

2021 P L C 56

[Lahore High Court]

Before Jawad Hassan, J

NESTLE PAKISTAN LTD

Versus

MEMBER NIRC and others

Writ Petition No.48023 of 2019, decided on 2nd November, 2020.

Industrial Relations Act (X of 2012)---

---S.33---Industrial and Commercial Employment (Standing Orders) Ordinance (VI of 1968), S. 2(i) & S.O.15---Redressal of individual grievances---"Workman"---Scope---Petitioner assailed rejection of its preliminary objection by the Member (National Industrial Relations Commission), (NIRC) fixing of the case for respondent's evidence and the order passed by Full Bench of NIRC whereby its appeal was dismissed---Validity---Petitioner had filed reply before the Member NIRC wherein it had objected qua maintainability of the grievance petition by stating that the respondent did not fall within the definition of "workman" as he was holding the post of Milk Collection Officer and was supervising the work of dozens of Milk Collecting Agents---Member NIRC without framing any issue had rejected the preliminary objections of the petitioner, which was against the law---Constitutional petition was allowed and the Member NIRC was directed by the High Court to frame legal issue, arising out of the reply of the petitioner, record evidence and then decide the same strictly in accordance with law.

Dalda Foods (Pvt.) Limited through National Administration Manager v. Sindh Labour Appellate Tribunal, Karachi through Member and 161 others 2013 PLC 118; Ittehad Chemicals through its Managing Director v. Punjab Labour Appellate Tribunal and 2 others 1990 PLC 227; Abdul Razzaq v. Messrs Ihsan Sons Limited and 2 others 1992 SCMR 505; Muslim Commercial Bank Limited through President and 3 others v. Muhammad Arshad Mehmood 2008 PLC 322; Imtiaz Ali Shah v. Chairman Bank of Punjab and others 2017 PLC 96 and Ashfaq Ahmad Abbasi v. Punjab Labour Appellate Tribunal and others 2017 PLC 67 ref.

Farooq Amjad Meer and Ahmad Farooq Meer for Petitioner.

Naveed-ul-Hassan for Respondent No.3.

ORDER

JAWAD HASSAN, J.---The Petitioner/Nestle Pakistan Limited has filed this writ

petition under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the "Constitution") against orders dated 18.01.2019 as well as 18.02.2019, passed by the National Industrial Relation Commission (NIRC), Multan Bench, Multan and order dated 31.07.2019 passed by the Full Bench National Industrial Relations Commission, Islamabad.

2. Learned counsel for the Petitioner submits that the Respondent No.3 was working with the Petitioner-Nestle Pakistan as Milk Collection Supervisor (MCS) and was receiving perks and benefits being managerial staff including pension under Managerial Staff Pension Fund. He states that the job of the Respondent No.3 was supervisory in nature and the Petitioner's company, due to change of business environment, decided to close activity at More Mandi Agricultural Services/Milk Collection Region, therefore, the employment of the Respondent No.3 was considered as surplus and in this respect, Management of the Company decided to terminate his services vide End of Employment Letter dated 29.10.2018 strictly as per his contract. He argued that pursuant to said letter, the Petitioner's company paid entire amount to him, mentioned in End of Employment Letter. He contends that the Respondent No.3 without disclosing these facts, filed petition before NIRC under Section 33 of the Industrial Relations Act, 2012 (the "Act") read with Section 15 of the West Pakistan Industrial and Commercial Employment (Standing Orders) Ordinance, 1968 (the "Ordinance") for setting-aside of his termination letter. Learned counsel argued that the Respondent No.3 was estopped to challenge the termination order once he received the entire payment under the doctrine of promissory estoppel but the Member NIRC, on the first date, without hearing the Petitioner, suspended the operation of the termination letter, vide order dated 18.01.2019. The Petitioner preferred an appeal under Section 58 of the Act which was dismissed by the learned Full Bench of NIRC, vide order dated 31.07.2019. He maintains that under Section 58(3) of the Act it is the right of the Petitioner to be granted an interim injunction because his appeal is the continuation of judicial proceedings, which has not been so granted by the Full Bench of NIRC rather the appeal has been dismissed in a summary manner. In this regard, he has relied on the case of Dalda Foods (Pvt.) Limited through National Administration Manager v. Sindh Labour Appellate Tribunal, Karachi through Member and 161 others (2013 PLC 118). Learned counsel to further strengthen his submissions, has relied on the cases of Ittehad Chemicals through its Managing Director v. Punjab Labour Appellate Tribunal and 2 others (1990 PLC 227), Abdul Razzaq v. Messrs Ihsan Sons Limited and 2 others (1992 SCMR 505), Muslim Commercial Bank Limited through President and 3 others v. Muhammad Arshad Mehmood (2008 PLC 322), Imtiaz Ali Shah v. Chairman Bank of Punjab and others (2017 PLC 96) and Ashfaq Ahmad Abbasi v. Punjab Labour Appellate Tribunal and others (2017 PLC 67).

3. Learned counsel for the Respondents vehemently objected qua maintainability of this writ Petition on various legal grounds.

4. Heard. Record perused.

5. The basic issue in this case is whether the Respondent No.3 is a workman or not? But the same has not been decided so far.

6. Record reveals that the Petitioner filed reply before the Member NIRC, Multan

wherein they objected qua maintainability of the grievance petition by stating that the Respondent No.3 does not fall within the definition of "Workman" as he was holding the post of Milk Collection Officer and Supervising the work of dozens of Milk Collection Agent, but the learned Member NIRC, Multan passed the impugned order dated 18.02.2019, rejecting the preliminary objection raised by the Petitioner and fixed the case for Respondent's evidence and so as the Full Bench vide order dated 31.07.2019.

7. This case has a checkered history but the basic question regarding maintainability of the grievance petition has not been decided so far. Record further reveals that the learned Member NIRC without framing any issue rejected the preliminary objections of the Petitioner which is against the law.

8. In view of above, to avoid more litigation this Petition is allowed and the impugned order dated 18.02.2019, passed by the National Industrial Relation Commission (NIRC), Multan Bench, Multan and order dated 31.07.2019 passed by the learned Full Bench, National Industrial Relations Commission, Islamabad, are set aside and the matter is referred to the Respondent No.1 with the direction to firstly frame legal issue, arising out the reply of the Petitioner viz, whether the Respondent No.3 is a workman or not? record evidence and then decide it strictly in accordance with law, rules, regulations and policies applicable thereto, after providing proper hearing to all the concerned including the Petitioner, expeditiously within a period of one (01) month from the receipt of certified copy of this order. However the Petitioner shall deposit the whole salary of the Respondent No.3 with the Respondent No.1, till the final outcome of the case. Parties to the case shall appear before the Respondent No.1 on 09.11.2020.

9. Disposed of accordingly.

SA/N-25/L

Petition allowed.